HCH4543/20
HIGH COURT OF ZIMBABWE
Family Division
ISSUED
16 Jan 2026
HARARE
JUDICIAL SERVICE COMMISSION

YEUKAI MUGABE (Nee Muzenda)
versus
VENGAI MUGABE

HIGH COURT OF ZIMBABWE
MUCHAWA J
HARARE, 8 July 2024, 19, 20,21 & 22 August 2024, 18 November 2024, 7 , 9 ,16 & 17 April 2025,28 & 29 August 2025,2 October 2025 & 16 January 2026.

Civil Trial- Divorce and Ancillary issues

B Mtetwa with *R Sitotombe,* for the plaintiff
A Muchadehama, for the defendant

MUCHAWA J

Introduction

The trial for this matter regrettably stretched for over a year. Summons were issued out on 21 August 2020.The first joint pre-trial conference minute was filed on 28 May 2024 after a meeting before Honourable TSANGA J. The issues referred to trial were captured as follows:

1. What constitutes assets of the parties as envisaged under the Matrimonial Causes Act?

2. What would constitute a fair, just and equitable distribution of such assets?

3. What would be an appropriate order with regards to maintenance of the three minor children?

At the pre-trial conference before a judge, the Defendant intimated that he wanted to amend his proceedings by applying for custody of the minor children. The parties agreed that in order not to waste time, the trial judge can interview the children of the marriage as part of the trial.

At the commencement of the trial on 8 July 2024, counsel for the defendant made clear that the defendant was conceding on some issues which had been previously contested in the joint pretrial conference minute of 28 May 2024. In particular, the defendant was no longer contesting the issue of school fees for the children as contained in paragraphs 7.1 and 7.2 of

the declaration as well as general maintenance for the children in the total sum of US$ 600 per month as general maintenance. He was therefore consenting to the claim.

The issue of custody was also no longer contested. The defendant only wanted to exercise reasonable access being half of the school holidays, alternative public holidays and alternative weekends. There was a further concession regarding stand 46 Longfield Gweru which was accepted as matrimonial property.

It quickly became clear that there was need to get clarity on what the agreed issues were and the remaining issues for referral for trial. The parties requested time to engage and come up with a consent paper. When the parties returned on 11 July 2024, there was no signed consent paper. Defendant's counsel stated that though the draft consent paper aptly captures the issues, the defendant was not happy with the proposed percentage distribution of the properties as he was paying maintenance for the children. He confirmed his concession on custody and maintenance.

Before the commencement of trial, the parties agreed to a revised joint pre-trial conference minute filed on 11 July 2024. In it, the issues of custody, access and maintenance and part of the distribution of immovable property are agreed. The Strathaven property is awarded solely to the plaintiff, the South African Reopark flat is solely awarded to the defendant. Stand No.46 Lingfield Township Gweru is awarded solely to the defendant. Stand No. 47 Lingfield Township Gweru is awarded solely to the plaintiff.

The issues referred to trial are set out as follows:

1. Do the following assets constitute assets of the parties as envisaged under section 7(1) of the Matrimonial Causes Act?

(i) Herd of fifty (50) cattle.

(ii) 8 Sikavakadzi, Mufakose, Harare.

(iii) Subdivision 2 of Wicklow in Chegutu.

The plaintiff does not want a share of 8 Sikavakadzi, Mufakose, Harare and subdivision 2 of Wicklow Chegutu but wants them considered in the redistribution. Plaintiff however, claims a fair and equitable distribution of the 50 herd of cattle.

2. What is a fair and equitable distribution of stand 167 Groombridge Township 2 of Lot 39A Mount Pleasant Harare also known as 40 Waller Avenue, Mt Pleasant, Harare, a property jointly owned by the parties.

3. Who should bear the legal costs arising from the trial?

The delay was occasioned by the fact that after commencement of trial on 19 August 2024 to 22 August 2024, the defendant changed legal practitioners mid trial. The matter was initially postponed for continuation to 25,26 and 27 November 2024.The new legal practitioners required a transcript of the proceedings. We only resumed the hearing of the matter on 7 April 2025 as the judge who had moved divisions from family law division to criminal division could only accommodate the matter during vacations. At this juncture, on 3 April 2025 the defendant had filed an application for withdrawal of admissions made. I dismissed such application and ordered the defendant to pay wasted costs on a legal practitioner- client scale after finding that this was a mala fide move, vexatious on the plaintiff and highly prejudicial and a waste of the court's time.

The matter continued on 9 April 2025 and the plaintiff closed her case. On 16 April 2025 the defendant's case was to be opened. He however was not in attendance presumably attending a bereavement. The defence case opened on 17 April 2025.The hearing continued on 28 August 2025 to 29 August 2025 and interviews were held with two of the minor children on 2 October 2025.My judgment was reserved. This is my judgment now.

Background to the matter

The parties were initially customarily married to each other in August 2006, and they commenced living as husband and wife. On 28 August 2010 they solemnised their marriage. Three children were born out of the marriage being;

1.Tarangarirwa Kgomotso Mugabe born on 16 November 2006.

2. Matipaishe Tadairwa Mugabe born on 24 February 2012 and;

3. Tanunurwa Tutule Winterose Runyararo Mugabe born on 27 May 2027.

The following property is alleged to form part of the assets of the parties.

1. 40 Waller, Mount Pleasant, Harare.

2. Stand 46 Lingfield Township of Gwelo.

3. Stand 47 Lingfield Township of Gwelo.

4. No. 8 Reopark, South Africa.

5. Stand 1020 Strathaven Township.

6. 8 Sikavakadzi, Mufakose, Harare.

7. Chegutu Farm - Subdivision 2 of Wicklow in Chegutu.

8. 6 Cockington Mandara.

9. Modemolle Property in South Africa.

10. 46 herd of cattle.

Issues emerging for resolution

The following issues emerge for resolution in this matter.

1. Whether the marriage has irretrievably broken down, and if so, whether a divorce decree should be granted.

2. Who should be granted custody of the two minor children? What are the access arrangements for the other parent?

3. What are the appropriate maintenance arrangements for the children in the circumstances?

4. What constitutes the assets of the parties as envisaged under the Matrimonial Causes Act?

5. What constitutes a fair, just and equitable distribution of such assets?

6. The issue of costs.

I deal with each issue in turn below.

Whether the marriage has irretrievably broken down, and if so, whether a divorce decree should be granted.

In her declaration, the plaintiff alleges that the marriage between the parties has irretrievably broken down based on loss of love and affection, the defendant's threats of divorce, physical violence at the hands of the defendant and general erosion of trust between the parties.

Initially in his plea, the defendant stated that the parties still love each other and a normal relationship could be rebuilt with him undergoing anger management and gender-based violence counselling. He prayed for dismissal of the claim for a decree of divorce. By the time of the trial and the acrimonious nature of the divorce proceedings, it was clear that the parties were *ad idem* that the marriage has irretrievably broken down, and a divorce decree should be granted. The defendant even made clear that he has moved on and is in a serious relationship.

It is my finding therefore, that the marriage between the parties has irretrievably broken down and a divorce decree should be granted.

Who should be granted custody of the minor children? What are the access arrangements for the other parent?

As of today, only two of the three children are still minors. They are Matipaishe Tadavirwa and Tanunurwa Tutule. The plaintiff prayed for the granting of custody to her and for the defendant to exercise reasonable access of half of every school holiday and alternate public holidays. In his plea the defendant consented to the plaintiff's custodianship. He however was averse to a rigid access regime which he considered as stifling to the impulsive and spontaneous enjoyment of the fatherhood and childhood bond between him and the children. He proposed that he be granted full and free access to the minor children upon giving reasonable notice to the plaintiff.

The joint pre-trial conference minute of 25 July 2024 resolved these two issues. Even the interviews held with the two minor children confirmed this position.

On custody this is my finding;

1. The plaintiff shall have custody of the minor children.

On access, this is my finding;

1. The defendant shall exercise reasonable rights of access as follows;

(i) On alternate weekends, public holidays, half term holidays and for half of each school holiday with major holidays such as Easter weekend, Heroes weekend and Christmas holidays alternating between the parties from year to year.

(ii) At such other additional times the plaintiff and the defendant may agree in advance or upon reasonable notice having been given; and

(iii) Neither the plaintiff nor defendant shall remove the minor children from Zimbabwe, save for bona fide holidays or emergency medical treatment, without the knowledge or prior written consent of the other parent, which consent shall not be unreasonably withheld.

Maintenance Arrangements for the Children.

In her declaration, the plaintiff prayed that the defendant pays the minor children's school fees up to tertiary education and pays for their extra lessons and extra- curricular activities up to tertiary education. She proposed to retain the minor children on her medical aid until they attain majority status or become self-supporting, whichever comes first. She also prayed that the defendant pays maintenance for the children in the monthly equivalent of six hundred United States Dollars (US$ 600).

When the defendant filed his plea on 7 October 2020, he pleaded that he was no longer employed and indicated that the children's needs will be met from the rentals received from the Mount Pleasant property. He said he could only afford to pay US$ 200 or more towards the children's school fees depending on the rentals collected after the distribution of the matrimonial property. This would be after deducting his own expenses therefrom. He pointed that the plaintiff who was gainfully employed, had the means to pay the outstanding fees after his contribution.

In the initial joint pre-trial conference minute of 28 May 2024, the issue of what would be an appropriate order in respect to the maintenance of the three minor children was flagged as an issue for trial.

As already explained above, the parties requested time for further engagement when the trial was supposed to commence. The result was a revised joint pre-trial conference minute of 25 July 2024.In it the issue of maintenance was recorded as an agreed issue on the following terms:

"1. Defendant shall pay to the plaintiff maintenance for each child in a sum equivalent to US$ 200.00 per month per child until each child reaches majority status, finishes 'A' level and becomes self-supporting or whichever occurs first.

2. That the defendant settles each child's entire school account inclusive of school fees, any boarding fees, school and sports uniforms, costs of extra lessons and extra-curricular activities including school trips and all school or education related costs.

2.1 In the event of the defendant entering into a payment plan with any of the schools or service providers, that the defendant provides the plaintiff with a copy of the payment plan setting out the terms thereof before schools open or before the amount due is payable.

3. In the event of each child having the necessary aptitude for university or any other form of tertiary education, that the defendant shall pay the entire costs of such higher education including tuition fees, upkeep costs including accommodation, transport, necessary equipment including laptops and all university/ tertiary related education costs.

4. That the plaintiff retains the children on her medical aid and meet all shortfalls up to US$ 100.00. That all shortfalls in excess of US$ 100.00 per month be shared equally as between the parties."

In giving her evidence, the plaintiff relied on the joint pre-trial conference minute and confirmed that the issue of maintenance had been settled by agreement. She however, gave evidence on the maintenance paid by the defendant during their separation. There has been no regular payment. In April 2021 she received groceries valued at US$ 200.00 which the defendant wanted half of. In August 2021 she was paid US$1 800 .00. That was all for 2021.Beginning of 2022 her lawyers wrote to defendant requesting monthly maintenance for the children. He paid US$ 450.00 from January to July 2022.In 2023 the defendant had only bought groceries twice in June 2023 and October 2023.In 2024 he bought clothes for the children. He would also visit the children's schools and leave them pocket money of US$5.00 per week. She has therefore, largely shouldered the children's daily needs whilst the defendant has paid school fees through a benefit from his employment. The defendant collects rentals from Mount Pleasant and Reopark in South Africa. On the other hand, the plaintiff collects rentals from the Strathaven property in the amount of US$800.00. This she uses to pay for her rented accommodation at US$1100.00. She then pays for fuel, the maid, water, electricity, internet, stationery, among other things.

Under cross examination, the plaintiff confirmed taking care of the children's daily needs for the past four years covering medical aid, school runs, food, bill payments, paying maid, rentals for accommodation, uniforms, stationery, extra-curricular activities, extra lessons and counselling.

The following exchange ensued under cross examination:

Q: After the divorce is finalised according to the consent paper confirm defendant will be responsible for the children's entire school fees account until first degree.

A: That's what he has indicated.

Q: Eldest has indicated that she wants to go to Canada, Australia or United States of America for University.

A: Yes. She asked her father to provide the budget but he has not indicated how much he will be willing to pay.

Q: Have you made calculations on how much it would be?

Mtetwa: Is maintenance in dispute or is there suggestion there was condition to it. Could learned friend clarify relevance of maintenance.

Sinyoro (defendant's legal practitioner): the evidence is relevant to the distribution of 40 Waller, Mt Pleasant. Defendant has stated he wants 80% on the basis of his contribution towards the entire school accounts of all three children till they finish high school as well as university up to attainment of first degree. It is impossible for defendant to have all these obligations without obtaining 80% of 40 Waller as his salary will not be enough for all 3 children."

The defendant has been in employment from December 2020 to the date of trial.

When the matter was adjourned on 21 August 2024, an interim order for maintenance was requested on the basis that though there was a concession by the defendant, to pay maintenance, this has not been honoured. This was despite the fact that the plaintiff was the owner of an undivided 50% share in 40 Waller, Mt Pleasant from which the defendant was collecting rentals and not remitting to plaintiff.

The following interim order was granted by consent of the parties:

> "1. The hearing of this divorce action be and is hereby postponed to a date to be advised by the Registrar of the High Court, Harare.
>
> 2. Pending the finalisation of this matter, the defendant be and is hereby directed to pay the agreed maintenance amount for the three minor children in the sum of US$ 200.00 (two hundred United Stated Dollars) per month per child commencing from the 1st of September 2024.
>
> 3. Pending the finalisation of this matter, the defendant shall pay to the plaintiff half share of the rentals received in respect of the parties joint property known as stand 167 Groombridge Township 2 of Lot 39a Mount Pleasant also known as 40 Waller Avenue, Mt Pleasant, Harare, with effect from 1 September 2024"

Upon continuation of the matter on 7 April 2025, Mr Muchadehama drew the court's attention to an application for withdrawal of admissions made which had been filed on 3 April 2025.In it the defendant sought to withdraw admissions made in respect of the maintenance for the children and the distribution of the Strathaven property. It was argued that in terms of rule 41(1) of the High Court Rules 2021, a party is allowed to amend pleadings. Also that in terms

of Rule 41(1) of the same rules, the court can allow a party to withdraw admissions and will not allow where such an application is malafide or prejudicial. I was referred to cases such as *Zimbabwe Allied Group Limited* v *Mildred and Mathias (Pvt) Ltd* HH 53/09 and *Lourenco* v *Raja Dry Cleaners and Steam Laundry (Pvt) Ltd 1984* (2) ZLR 15 paragraphs A-F were referred to, amongst others. The court was urged to allow the amendment of pleadings to ensure real issues between the parties are addressed and justice is served.

It was further argued that there would be no prejudice to the other party as the pleadings were already filed and there were lots of negotiations and everything was put in issue. The defendant had admitted to paying maintenance as set out in the joint pre-trial conference minute on the belief that the plaintiff would not persist with a claim of 50% of the Mt Pleasant property.

It was submitted too that in terms of the Maintenance Act, each parent ought to contribute maintenance for the minor children according to their means. Thought the first child is now a major, the defendant stated that the agreement to pay all school fees and school related expenses up to tertiary level was uninformed as the parties are both gainfully employed and are getting rentals from their properties. The prayer was for the withdrawal of the offer to singlehandedly pay all school fees and other related expenses. He also wanted to pay the US$ 200.00 per month as maintenance for the second child only when she was in plaintiff's custody and not when she was in boarding school. As for the first child who has turned 18 years old, the defendant finds no need to pay this.

The application was opposed as malafide and prejudicial to the plaintiff and as an abuse of court process.

Both Rules 41 and 50 (2) were said to provide for the giving of 10 days notice. As there was only a day's notice in their application, it was contended that it was improperly before the court as there was no consent from the plaintiff.

Ms Mtetwa submitted that it was improper for the defendant to seek to withdraw admissions made, in the face of an extant court order dealing with interim maintenance. Such admissions which had been translated to a court order could not be simply withdrawn by notice, it was contended.

It was argued that it is a false premise for the defendant to say he offered to pay maintenance on an uninformed basis and this was an unnecessary slur on his erstwhile legal

practitioners. The defendant even agreed to pay school fees in his plea. There was therefore no misadvise in the circumstances. As the pleadings were not amended, it was contended that the defendant had advised the plaintiff that no issue was arising on maintenance. In his counter claim the defendant states that maintenance be paid from rentals since he was then not employed. When he consented to the joint pretrial conference minute and offered to pay maintenance and school fees, he was employed.

Though the defendant filed a notice to amend his pleadings, this was not persisted with as further admissions were made at the instance of the defendant. This was after parties sat with their legal practitioners. At the material time the plaintiff was working in the same job as the defendant and the defendant was well aware of this.

Ms Mtetwa viewed the application to withdraw admissions made as a gross abuse of court process and a third attempt to delay finalisation of the matter. In her view the defendant was taking this as a game. If this application was to be granted, it would be prejudicial to the plaintiff who had already given her evidence in chief and was cross examined and was now at the stage of re-examination. This would lead to a change in the playing field. The court was referred to the cases of F*ield* v *Field* HCH 68/21 and *Ndlovu* v *Ndlovu* SC 23/16.

It was also contended that the agreed issues cannot be withdrawn as they are not pleadings but admissions.

On the maintenance for the oldest child who has now reached majority status but is not yet self-sustaining, the court was urged to consider the provisions of 58(3) of the Matrimonial Causes Act and allow the maintenance order to continue as the child is still in need of maintenance and lives with the Plaintiff. The case of *Chichetu* v *Muzuva* HH 153/25 was referred to in support of this position.

On the second child, it was pointed out that when the offer to pay US$200,00 per month was made, the child was already in weekly boarding. The defendant's shift in position was therefore said to be unjustified.

I reserved my ruling. When I handed down my ruling, I found that there is no valid application before me as no proper notice had been given. I however proceeded to comment on the history of this matter and noted that it is the defendant who has taken this trial as a game of

wits in which he seeks to outwit the plaintiff by all manner of schemes. In the *Field v Field supra* case it was held as follows:

> "This court, as a trial court cannot start acting as if it were dealing with a pretrial conference. That stage is past and the joint pretrial conference minute is there to guide the trial court".

I relied on the *Ndoro* v *Ndoro supra* case too wherein it was held that:

> "I have already stated that as the trial loomed large, the parties settled most of the issues dividing their assets between them regardless of whether such property was registered in the names of their companies in which the family trust held the shareholding or not. **The resolution of most of the issues in this way liberated the court a quo to deal only with three outstanding issues for trial**. Effectively therefore, what had been a sticking issue, that is, whether the property registered in the names of companies wholly owned by the trust should be apportioned by the court at divorce, ceased to be an issue for determination by the court a *quo*" (My emphasis).

I further found that the proposed recasting of issues after the plaintiff' evidence is out is prejudicial to her and would give the defendant an unfair advantage.

It is evident from the defendant's counsel's cross examination that she delved into issues of maintenance as this was considered relevant to the distribution of the Mt Pleasant property.

I found the application to be a malafide move, vexatious on plaintiff and highly prejudicial and dismissed it.

In his evidence the defendant agreed that he had offered to pay maintenance as in the revised joint pre-trial conference minute. He insisted he had been paying school fees through his employers religiously and was unaware of the children having been excluded from school. He was not agreeable to having his eldest daughter go to study at East Anglia University in the United Kingdom for a speech therapy degree despite his having placed before the court, options for Australia and Canada and United Kingdom. He preferred that she goes to Cape Town University which was cheaper and better ranked. The daughter had even filed an urgent application against the defendant to pay his tuition. He had refused. He was only prepared to contribute up to the University of Cape town budget and would pay US$12 000,00 within four to six weeks of the date of hearing.

Despite the first child having reached 18 years, the defendant accepts that she still lives with the plaintiff.

The defendant has given notice to both Arundel and Twin Rivers schools that he is withdrawing his last two daughters. He did not consult the plaintiff who is the custodian parent. He intends to enrol them at government schools which he considers equally good.

Overall, the defendant's position is that both parents should cater for the children's maintenance and when any child attains majority status, they should approach him and agree on a viable maintenance option. He appreciated that a custodian parent's contributions may go beyond just the financial.

In interviews with the minor children, they did confirm that their mother provided their food, attended to school runs or made suitable arrangements, tended to them when they were sick, and would go out of the way to ensure they had everything they need for school. Both children would be sad to be moved from their current schools which they are used to.

As this issue was an agreed issue, the capacities of both parents was not fully canvased as well as the specific needs of the children. There are also many variables coming into play following the distribution of the assets and stated changes in employment status of the defendant. This requires a full inquiry in terms of the Maintenance Act. The court as the upper guardian of the children's best interests should be wary not to be used to settle scores between the parties at the expense of the children, as is shown in this case where even pending this judgment there has been a cold war at play which is clearly divorced from the children's best interests.

In the meantime, the order on maintenance offered by the defendant will stand, as it was accepted by the plaintiff.

What constitutes the assets of the parties as envisaged under the Matrimonial Causes Act?

I deal with each of the assets canvassed in this trial.

1. *Stand 167 Groombridge Township 2 of Lot 39a Mt Pleasant also known as 40 Waller Road Mt Pleasant.*

It being common cause that this property is jointly owned by the parties, it is indeed an asset of the parties up for distribution in terms of the Matrimonial Causes Act.

2. *Stands 46 and 47 Lingfield Township of Gwelo Small Holding 21, each measuring 9 000 square metres.*

These two stands are agreed in the revised joint pre-trial conference minute to be assets of the parties which are up for distribution. They are jointly owned.

3. *Section no 8, Reopark Flat, South Africa.*

This is an asset which forms part of the assets of the parties. They jointly own it.

4. *Subdivision 2 of Wicklow in Chegutu.*

The plaintiff stated in her evidence that this farm was purchased from one Choice Chaibva for US20 000-00. She is however not laying a claim to the farm, but she wants it considered in the overall redistribution.

The defendant stated that this farm is held on lease by one Choice Chaibva who holds an offer letter from the Government of Zimbabwe. It is therefore not up for distribution. He entered into a joint venture agreement with Choice Chaibva.

An offer letter in favour of Choice Chaibva was tendered in evidence which is dated 24 May 2013. The joint venture agreement with Choice Chaibva was requested but the defendant did not provide same. Choice Chaibva who had been listed as a witness who would testify about the true ownership of the farm did not come.

In the case of *Chombo* v *Chombo* SC 41/18, it was held where the parties were holders of a 99-year lease from Government that the rights and benefits the respondent derives from the lease are a necessary consideration in the distribution of the assets of the spouses. In particular it was stated,

> "The lease constitutes part of the assets of the spouses and should have been taken into consideration in terms of Section 7(1) (a) of the Matrimonial Causes Act."

In *casu* there is no clear evidence that a lease exists in favour of the defendant. The finding in *Chombo v Chombo supra* cannot hold. It is therefore my finding that whatever rights, title and interest the defendant holds in subdivision 2 of Wicklow in Chegutu cannot be taken to be an asset of the spouses to the considered in the redistribution.

5. *No 6 Cockington Mandara and Mademolle Property in South Africa.*

These two properties were not included in the pleadings but were disclosed by the defendant as investments he made after the separation (which he called a divorce despite the

divorce not having been concluded). The Mandara property was acquired in June 2023 and the South African one in August 2024. These properties are allegedly held under the Vengai Mugabe Trust.

In *Chombo* v *Chombo supra*, the court held as follows:

> "Assets of spouses means all the assets owned by either spouse at the time of the divorce individually and those owned jointly. They include assets acquired by either spouse before the marriage or during the period of separation."

In *Gony*e v *Gonye* SC 15/09 this same principle was put thus "To hold, as the court a *quo* did, that as a matter of principle assets acquired by a spouse during the period of separation are to be excluded from the division, apportionment or distribution a court is required to make under section 7 (1) of the Act is to introduce an unnecessary fetter to a very broad discretion, on the proper exercise of which the rights of the parties depend."

I take note of the facts that when these properties were acquired the defendant was exclusively collecting rentals for both the Mount Pleasant property and 8 Reo Park South Africa despite the fact that these properties were jointly owned.

The issue of whether any property bought and registered under a Trust in order to hide it from matrimonial assets should be considered as an asset of the parties subject to distribution under the Matrimonial Causes Act has been explored in this jurisdiction. In the case of *Bernard Mahara Mutanga v Tsitsi Mutanga* SC 85/22 giving reference to *Tsitsi Mutanga v Bernard Mahara Mutanga* HH 109/20, the dispute between the parties concerned the ownership of the property situated at No. 16 Hawkshead Drive, Borrowdale.

After considering the evidence placed before it, the court a quo found that No. 16 Hawkshead Drive, Borrowdale was an asset belonging to Paradza Trust and held that it was distributable in terms of section 7 of the Matrimonial Causes Act. The court further concluded that Brabourn Trust was a stratagem employed by the appellant to defeat the respondent's claim to the property. Consequently, the property was distributed with the respondent being awarded an 85 % share, while the appellant received the remaining 15 % share.

In *Gonye* v *Gonye* 2009(1) ZLR 232(SC) at page 233 the Supreme Court held that:

> "Where the issue arises of whether the property rights, a proportion of the value of which is claimed by the one of the spouses, in reality lay with the other spouse or a company run by him, it is permissible to 'lift the corporate veil' in order

> that justice could be done in the apportionment of the assets in terms of s 7(1) of the Act. Where the company can be said to be the spouse's alter ego, the company's assets and proceeds can be said to be the spouse's and thus can be subject of an order under s 7(1)."

Whilst it is indeed true that a company is a separate legal entity from its shareholders, who in this case are husband and wife, there are circumstances in which the corporate veil may be lifted and the company's assets distributed between spouses upon the dissolution of a marriage. This principle can similarly apply to Trusts, particularly where a trust is used as a façade to conceal matrimonial assets or to defeat a spouse's lawful claim.

It is therefore my finding that both No 6 Cockington Mandara and the Mademolle property are assets of the spouses and available for redistribution. This is despite the defendant alleging that they are held under the Vengai Mugabe Trust. Trusts can be considered marital property based on when they were created, the source of funds and how they were used during the marriage.

6. *Stand No 1020 Strathaven Township of stand 219 Strathaven Township.*

It is common that this property is owned by the Fontaine Family Trust under deed of transfer 2292/2020.

In her declaration, the plaintiff had offered the Strathaven property to the defendant. In his plea, the defendant counter-offered this property to the plaintiff.

The revised joint pretrial conference minute of 25 July 2024 records as follows in respect of the Strathaven property:

"6. It is agreed between the parties that the property known as stand 1020 Strathaven Township of stand 219 Strathaven Township be awarded to the Plaintiff."

It was only on 3 April 2025 when the matter was set down for continuation on 7 April 2025 that the defendant filed a notice of application for withdrawal of admissions. This was after the plaintiff was through giving her evidence in chief and had been cross examined. What was outstanding was a conclusion of her re-examination. In her evidence, the plaintiff simply went as far as confirming that the Strathaven property was jointly acquired and is held in the name of a Trust.

The defendant explained that the Fontaine Family Trust has owned the property since 2020. Their first two children are the beneficiaries and they were yet to include the third child. The two parties are also beneficiaries. The defendant now wants the property to continue to be held in trust for the benefit of the children and the plaintiff can have a usufructuary right and reside there with the children.

When the defendant applied to withdraw his admissions including those on this property, I dismissed the application for the reasons set out above. The application was primarily improperly before me as it had not provided the prescribed notice period. My earlier comments on the Vengai Mugabe Trust as a facade to conceal marital property do not apply to the Fontaine Family Trust because of the time of the purchase of the property and the intentions of the parties. The Trust therefore owns this property and there is no basis to pierce the veil protecting this property especially as the children who are the beneficiaries have not been cited as they have an interest in this matter. It is therefore my conclusion that this is not an asset of the spouses as envisaged in the Matrimonial Causes Act.

7. *No 8 Sikavakadzi Mufakose*

In her evidence, the plaintiff averred that this is a property which was initially registered in her father in law's name. It was however bought by her brother-in-law but there was no paperwork to change into his name. In 2010, the brother in law's wife became sick with cancer and he wanted to sell the property to raise funds for the wife's treatment. The parties bought the house for US$15 000 and gave the brother-in-law some more money to attend to the wife's treatment. Because the house was still in the father in law's name, an agreement of sale was drafted between him and the parties. An email from the defendant to the plaintiff was sent in December 2012 titled "8 Sikavakadzi Agreement of sale." In it, the defendant attached the draft agreement of sale and asked the plaintiff to review and advise if there were amendments to be made. The plaintiff and the defendant are listed as the purchasers and the purchase price is given as US$ 10 000.00.

From 2013 the parties were in direct control of the property though sometimes the brother-in-law would collect rentals as they were sometimes in Zambia. A letter on page 6 of the plaintiff's bundle of documents was addressed to Mr and Mrs Mungate telling them about the tenancy agreement changes with effect from January 2014. The letter was from the plaintiff and defendant. From 2017 to 2018 the parties effected improvements on the property. The

letter to the Mungates was written when the parties were based in Zambia. The agreement of sale with the father-in-law was however never signed. After the Mungates other tenants, including Mrs Billiat were involved and communicated with the parties. The property was however never transferred to the parties. When they separated, the tenant was then giving rentals to the defendant.

On his part, the defendant has given various versions regarding the state of the Mufakose property. In a letter dated 29 July 2020 written by the defendant to plaintiff's lawyers he said the following:

"The Mufakose property was bought for the sole reason of ensuring that my biological father has a pension for the rest of his life. My wife and I agreed to that and as such this property must not be shown on the property distribution list"

In his plea, the defendant only says the Mufakose property is his father's property, and they do not possess ownership rights and title to the same. This property was allegedly bequeathed to the Vengai Mugabe Family Trust in his father's last Will and Testament. The plaintiff is not desirous of contesting the will on the Mufakose property.

In his evidence in chief, the defendant stated that this property has always belonged to his late father, Rangarirai Philip Mugabe and they never acquired it at any point. He says there was a point he was made administrator over the house and this entailed managing the tenants, upkeep of the property and remitting rentals to his father before his death on 19 September 2023. The will in which the property was bequeathed to the Vengai Mugabe Family Trust was provided. There is also evidence from the municipality offices showing that the late Rangarirai Philip Mugabe owned the property through cession.

Considering the documentary evidence from the defendant, the unsigned sale agreement tendered by the plaintiff, it is my finding that the Mufakose property does not fall under the assets of the parties and should not be considered in the redistribution.

8. *The Herd of Cattle*

In her declaration, the plaintiff is claiming 50% share of the herd of cattle at the Chegutu Farm.

In his plea, the defendant contends that the cattle are not part of the matrimonial property as they were not acquired from the proceeds of the matrimony between the parties but are donations from parties in the joint venture between him and Choice Chaibva.

In her replication the plaintiff insists that the cattle were acquired by the parties between 2009 and 2013 when the parties were resident in Zambia. The cattle were said to have been originally kept at the farm of a family member in Norton until they were moved to Chegutu upon the acquisition of the farm.

The defendant filed an amended plea which was however not pursued. In it he said that all the cattle at the farm were donated to him by his father and solely belonged to the defendant as they were further pledged and donated to the joint venture.

In her evidence, the plaintiff explained that they bought the Chegutu farm to house the cattle they had acquired during the period 2008 to 2012 in the Kent farming area in batches of 5 to 10 cattle. She is not aware of the alleged joint venture the defendant refers to nor is she aware of any donation of cattle to the joint venture. Upon separation, there were 46 cattle although the defendant said they were 50. Choice Chaibva was someone she only met when they purchased the Chegutu Farm. It was her father-in-law who had stayed at the farm and managed it for them. The plaintiff wants the court to work with the 46 cattle she is aware of.

The plaintiff questioned how her father-in-law could be in a position to donate up to 46 cattle to the joint venture yet at the time of her marriage he was living in Gutu and had around 6 herd of cattle only before moving to Norton at her brother in law's farm to supervise activities.

The defendant refuted the plaintiff's version. He said they first bought 15 heifers from his brother Elias Mugabe in 2012 who was struggling with medical bills due to his wife's illness. This was in 2012 and they paid US$5000. His sister-in-law passed on in 2013. When he came for the burial and had his brother show him the cattle, he noticed they were of an inferior breed than he had expected. When he retuned to Zimbabwe in 2014 and was out of a job, he sold 9 steers and remained with 6 heifers. This was done in agreement with the plaintiff and the money was used for the family upkeep. The remaining 6 heifers at the farm were exchanged with defendant's father's 3 or 4 cattle in Gutu which he then paid towards lobola for the plaintiff to his late mother in law's sister.

The defendant said after this he had no cattle to his name as his experience with his late brother had been unpleasant so he never acquired any more cattle. The cattle therefore belonged to his late father. They did not incur any expenses in the form of labour costs at the farm, but it was the defendant's late father who catered for his 2 to 3 employees at US$100.00 each per month. This money was US$200.00 coming from Mufakose.

At the time of his father's death, there were fifty (50) cattle but only forty-five (45) are now remaining. These belong to the Vengai Mugabe Family Trust as his father bequeathed them to the trust in his last will and testament in July 2023.

A copy of the joint venture agreement was not provided despite being requested. Choice Chaibva was not availed to give evidence on this too. The plea clearly specified that the cattle are donations from the defendant and Choice Chaibva who are parties to the joint venture agreement. The will of the deceased's father was written after the summons and plea. How then could the late father donate cattle which were already donated to the joint venture in which the father was not a party? It appears to me that the defendant was weaving his story as the matter progressed with the sole aim of excluding as much as he could from the purview of the court's jurisdiction to redistribute in terms of the Matrimonial Causes Act.

It is therefore my finding that the cattle are assets of the parties which are subject of redistribution.

Consequently, the following property falls for redistribution:

(i) The Mt Pleasant property
(ii) Stands 46 and 47 Lingfield Township of Gwelo
(iii) Section No. 8, Reopark Flat, South Africa
(iv) No 6 Cockington Mandara, Harare
(v) Mademolle Property in South Africa
(vi) 46 herd of cattle

What constitutes a fair, just and equitable distribution of the assets of the parties as envisaged under the Matrimonial Causes Act?

The starting point for this is the law regulating the division of assets of the spouses at divorce. The law is contained in s 7 of the Matrimonial Causes Act. Section 7 (1) of the Act empowers an appropriate court to make an order with regard to "the division, apportionment and distribution of the assets of the spouses." To carry this out, the Court is guided by the provisions of s 7 (4) and takes the following factors into account:

> "(a) the income-earning capacity, assets and other financial resources which each spouse and child has or is likely to have in the foreseeable future;
> (b) the financial needs, obligations and responsibilities which each spouse and child has or is likely to have in the foreseeable future;
> (c) the standard of living of the family, including the manner in which any child was being educated or trained or expected to be educated or trained;
> (d) the age and physical and mental condition of each spouse or child;
> (e) the direct or indirect contribution made by each spouse to the family including contributions made by looking after the home and caring for the family and any other domestic duties;
> (f) the value to either of the spouses or to any child of any benefit, including a pension or gratuity which such spouse or child will lose as a result of the dissolution of the marriage;
> (g) the duration of the marriage;
>
> And in so doing the court shall endeavour as far as is reasonable and, having regard to their conduct, is just to do so, to place the spouses and children in the position they would have been in had a normal marriage relationship continued between the spouses."

It is trite that the law provides a wide range of factors for consideration thus giving the Court "an extremely wide, if not unfettered, discretion to divide the assets. In doing so, the overarching consideration is to place the parties in the position they would have occupied if the marriage had continued, as far as possible in the circumstances." See *Usayi* v *Usayi* SC 22/24.

In dealing with these factors, I wish to take heed of the caution raised in *Usayi* v *Usayi supra*. It is thus;

> "The sooner married couples realise that marriage is not a business arrangement where they come together in matrimony for convenience to acquire property separately while keeping receipts and other documents for future use in court, the better for everyone. The courts recognize that parties come together in Holy Matrimony for their common good and the good of their children. It is both the direct and indirect input of the spouses which leads to property acquisition

> This is a classic example of parties who thought they were in a business arrangement. They spent a lot of time trying to outdo each other on evidence to show that it is one and not the other who singularly acquired property. This was a poor investment of time and energy. There has to be obvious ad compelling reason for the court's departure from the overarching principle of equality in the sharing of property."

The case before me is a classic example of where a lot of time and energy was expended, particularly by the defendant in trying to show that it was him who contributed the most in acquiring the assets of the spouses. This for example, led to allegations of having contributed 92% to 8% by the plaintiff or 87% to 13% by the plaintiff for the Mount Pleasant property. It got as hilarious as providing ledgers which recorded all expenses including tomatoes, bananas and "nzungu" groundnuts of around a dollar, all in the name of accounting. There can be no better example of one thinking that their marriage is a business arrangement.

This Court will not go through the hair splitting and time-wasting exercise of compiling how much each party brought to the table for the purchase of each asset. I propose to look at the factors in s 7 (4) holistically. I will not necessarily do this in the order they are presented.

I note firstly that the parties started staying as husband and wife in August 2006 though their marriage was registered in August 2010. They have been married for a long nineteen (19) year period.

The plaintiff is to date aged 42 years whilst the defendant is aged 45 years. Both of them are young and in the prime of their working life. No physical or mental incapacities were reported by either. The defendant has a whole 20 years to work before retirement at 65 years whilst the plaintiff has 23 years ahead of her.

The eldest child is aged nineteen (19) years, the second thirteen (13) years whilst the last is only eight (8) years old. It is noteworthy that the children are so spaced that there will be no two children at tertiary level at any given time. No physical or mental incapacities were reported in respect of the children.

The evidence of the parties shows that they were accustomed to living an upper middle-income lifestyle judging from their areas of residence, salaries received, jobs held and sending their children to some of the elite private schools in the country.

Even for tertiary education, the defendant was planning of sending his daughters to universities overseas whose tuition fees would be over one million United States Dollars. He provided spreadsheets and cross examined the plaintiff on this.

The court has to be alive to this standard of living and in particular the manner of education of the children and ensure that this is not disrupted by the divorce.

Another factor which the Court has to be alive to is the value to either of the spouses or children of any benefit including a pension or gratuity. In this case the defendant holds a court order granting him an amount of US$323 000-00 against his former employer, the University of Zimbabwe. Though the defendant said this is subject to an appeal, the order is currently extant though it is said to be payable in the ZIG equivalent. It is a windfall the plaintiff and children will miss out on should it be received after the divorce.

I turn to look at the financial needs, obligations and responsibilities each spouse or child is likely to have in the foreseeable future. As the plaintiff is the custodian parent, she has to meet the day-to-day expenses for the children. Though she collects rent from the Strathaven property in the amount of US$800-00, she tops this up to pay US$1100-00 per month where she stays with the children. She meets food, fuel, maid, water, electricity, internet and stationery expenses and spends around US$2 000-00. She also pays for the children's extra lessons, uniforms and school runs. The children's medical expenses are catered for by her.

For the first child now enrolled at East Anglia University in the United Kingdom, the plaintiff has had to meet all her tuition, accommodation, transport and sustenance costs as the defendant has basically refused or neglected to contribute anything despite making a commitment before the Court to pay an equivalent of the cost at the University of Cape Town.

The plaintiff requires an amount of about US$45 000.00 per annum for three years covering tuition, accommodation, upkeep and flights for the first child. The defendant was

content to refer his first daughter to the maintenance court to lodge a claim as she is now above eighteen (18) years old. On the other hand, the plaintiff, as the mother of the child who was living with her and witnessing how she was affected by this, had to make a plan. The child is therefore at East Anglia University now.

The defendant has refused to pay the US$200-00 maintenance for the second daughter on the basis that she will be in boarding school. This is despite the fact that she has always been in weekly boarding and still needs to eat and use money when she is home. In other instances, the defendant has not even exercised his access and the children have remained in plaintiff's custody.

As the defendant wants to have the children's manner of education disrupted and have them enrolled at government schools, the plaintiff who stays with the children and is acutely aware of how this will affect the children and saddens them, will have the added responsibility of retaining the children in the private schools they are attending and are used to. For the defendant to say that the government schools he and plaintiff attended, more than twenty (20) years ago are still as good, is surprising given that they have sent their children to these private schools, all along.

The Court also has to consider the income earning capacity, assets and other financial resources each spouse or child has. All three children, two of whom are minors, have nothing at their disposal. They rely on their parents.

The plaintiff is currently employed by Population Services Zimbabwe as a Marketing Director. Her previous gross salary in terms of the employment contract was US$3 806-02 at PSMI. She was entitled to medical aid cover for herself, spouse and children up to 50%. She was entitled to school fees for her children in full. She was also entitled to fuel allowance.

At the moment she also collects rentals from the Strathaven property of US$800-00 which she tops up to pay for US$1100 rentals where she stays.

Though she is entitled to 50% of the rentals from Mt Pleasant, the defendant has not consistently given her half of $2 900-00 testified as the rental amount by a representative of the tenant; The Growing Tree. The defendant says he was collecting US$2000-00 per month

from 2019. If one calculates from 2021 when the defendant received the rentals and did not account to the plaintiff up to 31 August 2024 when I issued an interim order for him to pay half the rentals to the plaintiff, he therefore retained US$96 000-00. If one uses the US$2 900-00 indicated as the rental paid to the defendant by the tenant representative, he has received US$106 800-00.

The defendant is also in receipt of rentals from Rio Park property in South Africa at R4 100-00 nett. He therefore receives R66 528 per annum. Total rentals from 2018 to date come to R510 048-00.

Up till October 2025, the defendant was employed as Distribution Manager at Innscor. He resigned voluntarily.

He has an award in his favour in the amount of US$323 000-00 awarded by the Supreme Court. His former employer, University of Zimbabwe has appealed against this award at the Constitutional Court of Zimbabwe.

The defendant is in receipt of rental income from the Mandara Property at $US1500-00 per month since June 2023 and R13 500-00 per month for the Mademolle property from August 2024.

At the date of the hearing the defendant was discussing promising consultancy work.

The Court is enjoined to consider both the direct and indirect contributions of the parties to the acquisition of the assets of the spouses.

The plaintiff's formal career started before her marriage as a graduate trainee at CIMAS in 2004 to 2005 and she was earning $700-00 and renting a place of her own. In 2006 she was in her last year at university. She graduated in October 2006 and started staying with the defendant. She was pregnant then and delivered in November 2006. From February 2007 the plaintiff started working at Zimpapers and lasted for seven (7) months. Thereafter she got employed by Standard Chartered as a management trainee. Before the marriage the defendant was employed at Price Waterhouse and Coopers as a trainee clerk and was living in Mufakose.

At the time of marriage, he was then employed at Innscor as assistant group financial manager. They then started to buy all their assets together.

Some eight (8) months into her management training course, the plaintiff resigned from her job in order to support the defendant who had secured a job in Zambia. She gave up a highly sought out opportunity which could have landed her a middle management position. She was taking care of her husband and one and half year-old child. She spent two and half years without landing a job in Zambia but eventually got a job as a property consultant.

Whilst waiting to secure a job, the plaintiff was involved in a chicken rearing project in partnership with a friend. They produced 500 chickens per batch and supplied supermarkets and hotels. She also sold clothes, shoes and handbags. She came back to Zimbabwe in 2012 and enrolled for a project management certificate at the University of Zimbabwe. In September 2012 she got a job with Stanbic. Thereafter she was employed by a pharmaceutical company from October 2013 to April 2016. Her next stint was at Netstar Ambulance from May 2016 to December 2016. She then moved to Premier Service Medical from December 2016 to December 2020 as Marketing and Brand Specialist and finally to Population Services Zimbabwe as Marketing Director where she is currently employed.

The defendant was employed in Zambia from 2008 as a finance manager. He returned in 2013 and was unemployed till 2014 when he got a job at the University of Zimbabwe. He left this job in 2018 and got a job in Afghanistan from July 2018 to October 2019. He was unemployed for a short stint in 2020 but got new employment in January 2021. The last job he held before resigning in October 2024 was managing director for Innscor Division.

In 2013 to 2014, both enrolled for the MBA programme at University of Zimbabwe. They both benefited from a staff exemption once the defendant was employed there.

Both parties agree that the defendant was always in receipt of higher income and so he contributed more financially to the acquisition of their assets.

As illustrated by how these assets were acquired and registered, the parties both contributed to the acquisition of the assets albeit with defendant contributing more, directly.

They first bought a flat at Rosshire Heights which was registered in both their names. The two Gweru stands were also registered in both their names. The Mt Pleasant property was bought in 2015. The parties co-banked in order to get mortgage finance at a higher value.

The Strathaven property was bought and registered under the Fontaine Family Trust where the parties are trustees and their two elder children are beneficiaries.

Reopark in South Africa was bought and registered in the names of both parties. The defendant paid the bulk of the money but the plaintiff also contributed. Another property Flat 1 Dick King was also bought and sold to finance the Strathaven purchase. A Kadoma property was also bought and sold as an investment property.

Clearly, the parties who started off with nothing when they started living together in 2006, worked jointly to amass both the movable and immovable properties they now hold.

Section 7 (4)(e) of the Matrimonial Causes Act enjoins the Court to also consider indirect contributions made by each spouse to the family including contributions made by looking after the home and caring for the family and any other domestic duties.

In the case of *Usayi* v *Usayi* SC 11/03 he Court opined on the valuation of indirect contributions as follows:

> "How can one quantify in monetary terms the contribution of a wife and mother who for thirty-nine (39) years faithfully performed her duties as wife, mother, counsellor, domestic worker, house keeper, day and night and nurse for her husband and children? How can one place a monetary value on the love, thoughtfulness and attention to detail that she puts into all the routine and sometimes boring duties attendant on keeping a household running smoothly and a husband and children happy? How can one measure in monetary terms the creation of a home and therein an atmosphere from which both husband and children can function to the best of their ability?"

The Court proceeded to award 50% share of the immovable property to Mrs Usayi who had only contributed indirectly to the acquisition of the assets. A similar approach was followed in *Mufanani* v *Mufanani* HH 32-16 and *Mhora* v *Mhora* SC 89/20.

In *casu*, the plaintiff who had landed a highly sought out management trainee position with Standard Chartered, left in order to accompany and support her husband who had gotten a job in Zambia. Their first child was one and half years and she took care of her husband and child and the home for two and half years without getting a job.

When she came back to Zimbabwe in 2012 and her husband remained in Zambia, they had two children. She continued as primary care giver for the children and made a home for them here. The defendant on his part would remit resources to pay for help in the form of maids and a gardener.

From July 2018 to October 2019 the defendant was employed in Afghanistan. The plaintiff remained as primary care giver and by then the last child had been born in 2017.

Another period to consider is that from when the parties separated in or about 2020/1. The plaintiff has been the custodian parent and primary care giver for the children. Her role throughout has been complicated by the fact that in most instances she has also been in formal employment and the balancing act with her indirect role as caregiver makes it even more difficult to put a monetary value to her contribution. The children made it very clear that the plaintiff is their primary care giver who is a good mum who makes sure that all the details of their life are taken care of on time and she sacrifices a lot for them.

In the circumstances of this case, the direct and indirect contributions of the parties balance out equally.

In the case of *Mhangami* v *Mhangami* HH 523-21, the Honourable TSANGA J wrote a seminal judgment on division of matrimonial property upon divorce in light of international, and regional instruments and the local laws. I can do no better than quote extensively from her. She said:

"Section 26 of our Constitution of Zimbabwe[1] deals with marriage. Therein, it espouses the principle of "equality of rights and obligations of spouses during marriage and at its dissolution". Section 56 also lays down equality and non-discrimination as fundamental rights. Discrimination is prohibited on grounds such as custom, culture, sex and gender among others. Furthermore, in interpreting the

[11] Amendment (No 20) Act 2013

provisions on fundamental rights and freedoms, s 46 also requires the courts to take into account international law and all treaties and conventions to which Zimbabwe is a party. Zimbabwe is party to the Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW), the Declaration of Human Rights; the Covenant of Civil and Political Rights; and the African Chartered on Human Rights and its Protocol on the rights of women. All these instruments contain provisions on men and women's status within the family. As such the principles out laid in these instruments with respect to marriage and family are crucial considerations in dissolution of marriage.

[13] On marriage, Article 16 (c) of CEDAW[2] for example stipulates equality in marriage and at its dissolution as a fundamental principle. Article 5 of CEDAW also requires States to actively address stereotypes on roles of both men and women that impede equality. As another example the Protocol to the African Charter on Human and People's Rights on the rights of women also requires State parties in its article V1, to ensure that women and men enjoy equal rights and are regarded **as equal partners** in marriage. The net effect is that there is bedrock of principles both constitutionally and from obligations under international treaties that are of relevance. As part of State machinery, courts are therefore enjoined to ensure that the treatment of both men and women in law and in private life accords with the principles of equality and justice when it comes to marriage.

[14] In addition, the Matrimonial Causes Act [*Chapter 5:13*] in s 7(4) in particular, lays out the considerations that the courts must consider in the exercise of their discretion as to how property is to be distributed upon divorce. These include factors such as the income earning capacity of the spouses; financial needs, obligations and responsibilities; standard of living, age, physical and mental condition of each spouse; direct and indirect contributions, value of pensions and gratuities; and the duration of the marriage."

After going through the factors considered above, the evidence placed before me, the applicable law at the international, regional and local level, it is my considered opinion that there is need to achieve a 50:50 share of the assets to achieve a reasonable, practical and just division of the assets of the parties.

For Plaintiff

1. Stand 167 Groombridge Township 2 of Lot 399 Mount Pleasant whose value was estimated by the defendant to be around US$400 000-00.

[2] See Art 16 (1) (c) and (h) of CEDAW and also CEDAW General Recommendation No 21 on Equality in Marriage and Family Relations

2. Stand 47 Lingfield Township of Gwelo Small Holding 21.

3. 23 herd of cattle.

4. A usufructuary right over Stand 1020 Strathaven Township of Stand 219 Strathaven Township.

For Defendant

1. Number 8 Reopark Flat, South Africa estimated value is R700 000-00 equivalent to USD41 726.

2. Stand 46 Lingfield Township of Gwelo Small Holding 21.

3. No. 5 Cockington Mandara, Harare estimated value is US$210 000-00.

4. Mademolle property in South Africa whose estimated value is R2 500 000-00 whose USD equivalent is USD148 990-00.

5. 23 herd of cattle.

Costs

Whereas the defendant proposed that each party bear its own costs the plaintiff put this in issue. Whilst recognizing that generally courts do not mulct litigants with costs in family law matters, this case was alleged to be exceptional as the defendant has conducted himself and the trial in a manner that is so outrageous as to attract costs, even at a punitive scale.

The basis upon which costs are motivated against the defendant is a belief that the defendant stalled the conclusion of the matter by constantly changing his position. On 8 July 2024 when the trial was set to commence the defendant advised that he was no longer contesting issues of custody, quantum of maintenance including payment of the children's

entire school account up to tertiary level inclusive of extra lessons and extra-curricular activities.

On proprietary issues whilst the defendant had not contested the plaintiff's joint ownership of the Mt Pleasant property, he then questioned the percentage she was entitled to and his assertions on this continued to swift.

The court stood the matter down to allow the parties to record what were no longer issues for trial. The defendant refused to sign this consent paper. In the end a revised pre-trial conference minute was filed on 25 July 2024. Due to the backwards and forth process the matter was not heard during the dates it was set to be heard in July 2024. In the end it was to be heard during the vacation dates of 19 to 21 August 2024.

The plaintiff believes the delays were intentionally made in order for the defendant to continue collecting rentals for the Reopark and Mount Pleasant properties.

Even when the trial resumed, the defendant who had said the pre-trial conference minute correctly captures all the agreed issues, resiled from these. For instance, he was no longer ready to take up the children's entire school account up to tertiary level as illustrated by the evidence on the eldest child's enrolment for university. He also put to issue the distribution of the Strathaven property previously agreed to. The Court issued an interim maintenance order but the defendant did not abide with its terms and paid as and when he wanted and an amount less than what the tenant gave evidence to be the rent paid. The tenant was subpoenaed to give evidence as the defendant refused to provide a copy of the lease agreement.

When the matter was set to resume, the defendant engaged new counsel who required a transcribed record.

In between the defendant defaulted in paying school fees for the two younger children leading to their exclusion from school. I already captured how the defendant refused to pay tuition for his eldest daughter at East Anglia University and spent a lot of time arguing in favour of Cape Town University. He even made an undertaking to contribute within four (4) to six (6) weeks an equivalent of Cape Town University fees. I doubt that this was honoured.

Due to the constant change of goal posts, it was argued that costs on a punitive scale be granted. His conduct is classified as reprehensible and dishonest as it was calculated to delay finalisation of the matter and ensure he continues to collect rentals from the Mount Pleasant and Reopark properties.

It was submitted for the defendant that as this is a matrimonial case, emotions run high and a party is not precluded from raising issues before the Court. All the issues raised were triable and contested.

On her part, the plaintiff is said to have changed lawyers three times and changed positions with each lawyer.

It is averred that the plaintiff is able to pay her own costs and each party should be ordered to pay its own costs.

There is a clear distinction between the engagement of parties prior to the commencement of trial. Even r 49 of the High Court Rules, 2021 provides for curtailment of proceedings through a pre-trial conference. The parties attempt to reach agreement on possible ways of curtailing the duration the trial. Thereafter they file a joint pre-trial conference minute.

The defendant did more than simply change position. I already held that he cunningly tried to recast issues during the trial despite the filing of a joint pre-trial conference minute. (See *Field* v *Field* HCH 68/21 & *Ndlovu* v *Ndlovu* SC 23/16). In *Field* v *Field* it was held that:

> "This court, as a trial court, cannot start acting as if it were dealing with pre-trial conference. That stage is past and the joint pre-trial conference is there to guide the trial court."

Costs on a higher scale are not lightly given. In this case I find that the defendant engaged in *malafide* and reprehensible behaviour in how he conducted this matter. The issues relating to the children were welded as weapons for negotiation and to fix the plaintiff. The delays were to maximise on the collection of rentals and vex the plaintiff. I am persuaded by

the position in *Khumalo* v *Victoria Falls Municipality & Anor* 2018 (1) ZLR 232 at 238 where MATHONSI J held as follows:

> "The award of costs of any land is discretionary upon the court which ordinarily wields it against a party for undertaking a step in the proceedings which lacks probity. There can be no doubt that the second respondent has been extremely remiss in the handling of this matter to an extent that one may perceive an intent to victimize the applicant."

Costs on a legal practitioner and own client scale were ordered.

In *casu* I make the same award of costs on a legal practitioner-client scale.

Accordingly, I make the following order:

1. A decree of divorce be and is hereby granted.

2. Custody of the minor children Matipaishe Tadavirwa Mugabe (born on 24 February 2012) and Tanunurwa Tutule Winterose Runyararo Mugabe (born on 27 May 2017) is granted to the plaintiff.

3. The defendant shall exercise access rights to the minor children as follows;
   3.1. On alternate weekends, public holidays, half term holidays and for half of each school holiday with major holidays such as Easter weekend, Heroes weekend and Christmas holidays alternating between the parties from year to year.
   3.2. At such other additional times the plaintiff and the defendant may agree in advance or upon reasonable notice having been given, and
   3.3. Neither the plaintiff nor the defendant shall remove the minor children from Zimbabwe, save for *bona fide* holidays or emergency medical treatment, without the knowledge or prior written consent of the other parent, which consent shall not be unreasonably withheld.

4. The maintenance of the minor children is to be regulated as follows and in terms of the defendant's commitment.

   4.1. The defendant shall pay to the plaintiff maintenance for each minor child in the sum equivalent to US$200-00 per month per child until each child reaches majority status, finishes "A" level and becomes self-supporting or whichever occurs first;

   4.2. The defendant shall settle each child's entire school account inclusive of school fees, any boarding fees, school and sports uniforms, costs of extra lessons and extra curricula activities including school trips and all school/education related costs.

   4.3. In the event of the defendant entering into payment plan with any of the schools or service providers, that the defendant provides the plaintiff with a copy of the payment plan settling out the terms thereof before schools open or before the amount is due and payable.

   4.4. In the event of each child having the necessary aptitude for university or any other form of tertiary education, that the defendant shall pay the entire costs of such higher education including tuition fees, upkeep costs including accommodation, transport, necessary equipment including laptops and all university/tertiary related education costs.

   4.5. The defendant shall not unilaterally transfer the minor children from their current schools without the express written consent of the plaintiff who is the custodian parent.

5. In respect to Tarangarirwa Kgomotso Mugabe (born on 16 November 2006), para 4.4. of this order and the defendant's commitment on 28 August 2025, made before the court, the defendant is ordered to pay US$12 000-00 per annum. The amount for 2025 is to be paid within four (4) to six (6) weeks of this order. For every subsequent year the amount is payable a month before opening into the student's account at East Anglia University.

6. The following property is declared to fall under assets of the spouses and is subject to redistribution-
   6.1. Stand 167 Groombridge Township 2 of Lot 39a Mount Pleasant
   6.2. Stand 46 Lingfield Township of Gwelo Small Holding 21 (9000 square metres)
   6.3. Stand 47 Lingfield Township of Gwelo Small Holding 21 (9000 square metres)
   6.4. Section No. 8, Reopark Flat, South Africa
   6.5. No. 6 Cockington Road, Mandara, Harare
   6.6. Mademolle property in South Africa
   6.7 46 herd of cattle at the Chegutu Farm

7. Stand 1020 Strathaven Township of stand 219 Strathaven Township is not an asset of the parties. It is the property of the Fontaine Family Trust.

8. House number 8 Sikavakadzi Road, Mufakose belongs to the Vengai Mugabe Family Trust.

9. It is fair, just and equitable for the plaintiff to be awarded the following property as her sole and absolute property;
   9.1. The property situate at Stand 167 Groombridge Township 2 of Lot 39a Mount Pleasant, Harare
   9.2. Stand 47 Lingfield Township of Gwelo Small Holding 21 (9000 square metres)
   9.3. 23 herd of cattle

10. It is fair, just and equitable that the defendant is awarded the following property as his sole and absolute property;
   10.1. Section No. 8 Reopark Flat in South Africa
   10.2. Stand 46 Lingfield Township of Gwelo Small Holding 21 (9000 square metres)
   10.3. House situate at No. 6 Cockington Road, Mandara, Harare

10.4. The Mademolle Property in South Africa

10.5. 23 herd of cattle

11. The plaintiff and defendant shall, within ninety (90) days from the date of this order, ensure that the immovable properties awarded to them are transferred and registered in their names. Should a party fail to take action within a period of seven days from the request being made, the Sheriff of the High Court be and is hereby authorized to sign the necessary documents for transfer of the immovable properties.

11.1. The plaintiff and defendant shall each bear their own transfer costs.

12. The plaintiff is granted usufructuary rights over Stand 1020 Strathaven Township of Stand 219 Strathaven Township, Harare.

13. The delivery of 23 herd of cattle to the plaintiff shall be done in the presence of the Sheriff of the High Court at a cost to be borne by the plaintiff. In the event of non-cooperation from the defendant, the Sheriff of the High Court is authorized to take all necessary measures to ensure that the delivery occurs.

14. The defendant is to pay costs on a legal practitioner and client scale.

HCH4543/20
HIGH COURT OF ZIMBABWE
Family Division
ISSUED
16 Jan 2026
HARARE
JUDICIAL SERVICE COMMISSION

MUCHAWA J.....

Mtetwa & Nyambirai, Plaintiff's Legal Practitioners
Mbidzo, Muchadehama & Makoni, Defendant's Legal Practitioners